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THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : WP(C)/3600/2026

PROSANJIT NUNISA AND 66 ORS
S/O LATE LAISENDRA NUNISA, R/O NOBDI LONGKUKRO, P.O. AND P.S. UMRANGSO, DIMA HASAO, ASSAM-788931.

2: SRI DEPON NABENSA
R/O NOBDI LONGKUKRO
P.O. P.S. UMRANGSO
DIMA HASAO
ASSAM-788931.

3: SRI DINESH HOJAI
R/O LONGKUKRO
UMRANGSO
DIMA HASAO
ASSAM-788931.

4: SRI BIDESH HOJAI
R/O LONGKUKRO
P.S. UMRANGSHU
DIMA HASAO
ASSAM - 788931.

5: SRI PROSENJIT JIDUNG
R/O LONGKUKRO VILLAGE
P.O. UMRANGSO
DIMA HASAO
ASSAM - 788931.

6: SRI MONIT HAGJER
R/O P. HAGJER
GUNJUNG
DIMA HASAO
ASSAM-788812.

7: SRI PHONJOY HOJAI
R/O LONGKUKRO
UMRANGSO
DIMA HASAO
ASSAM-788931.

8: SRI PUNIT KEMPRAI
R/O JARAMDISA
NASINGWARI
P.O. NARSINGWARI
DIST. DIMA HASAO
ASSAM-788819.

9: SRI JOTINDRA LANGTHASA
R/O LONGKUKRO
VTC UMRANGSO
DIMA HASAO
ASSAM - 788931.

10: SRI NIKHONJOY NABENSA
R/O LONGKUKRO
UMRANGSO
DIMA HASAO
ASSAM-788931.

11: SRI JITENDRA GIRISA
R/O NOBDI LONGKUKRO
UMRANGSO
DIMA HASAO
ASSAM - 788931

12: SRI GOLEN HOJAI
R/O NEAR LONGKUKRO LP SCHOOL
29 KM
UMRANGSO
DIMA HASAO
ASSAM 788931.

13: SRI DEKHON NABENSA
R/O LONGKUKRO
UMRANGSO
DIMA HASAO
ASSAM - 788931

14: SRI RANJIT LANGTHASA
R/O LONGKUKRO
UMRANGSO
DIMA HASAO

ASSAM-788931.

15: SMT KOMILA LANGTHASA
R/O LONGKUKRO
DIMA HASAO
ASSAM-788931.

16: SRI JUNIL NUNISA
R/O LONGKUKRO
UMRANGSO
DIMA HASAO
ASSAM-788931

17: SRI JONTRI NUNISA
R/O DERSI
P.O. HAFLONG
DIMA HASAO
ASSAM - 788931.

18: SRI BAPON PHONGLO
R/O GERESO-III
LANGTING
VTC LANGTING BAZAR
DIMA HASAO
ASSAM - 788832.

19: SRI JOYMOL LANGTHASA
R/O NOBDI LONGKUKRO
UMRANGSO
DIMA HASAO
ASSAM - 788931.

20: SRI PORNUT HOJAI
R/O LANGPHLAIDISA
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

21: SRI DUTTARAM HOJAI
R/O LANGPHLAIDISA
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931

22: SRI SORNO HOJAI
R/O NOBDI LANGJUN
P.S. UMRANGSO
DIMA HASAO

ASSAM.

23: SRI SOSTO HOJAL
R/O NOBDI LANGJUN
P.S. UMRANGSO
DIMA HASAO
ASSAM.

24: SRI DESANDAO HOJAI
R/O LANGPHLAIDISA
UMRANGSO
DIMA HASAO
ASSAM - 788931.

25: SRI SAMUEL RONGPI
R/O CHOTO LARPENG
P.S. UMRANGSO
DIMA HASAO
ASSAM-788931.

26: SRI BIKROM RONGPI
R/O CHOTO LARPENG
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

27: SRI SAMUEL CHINGTHONG
R/O CHOTO LARPENG
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

28: SRI SINGNOT ENGTI
R/O CHOTO LARPENG
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

29: SRI LOWELLSON RONGPHAR
R/O CHOTO LARPENG
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

30: SRI HOMESON KATHAR
R/O CHOTO LARPENG
HAFLONG
DIMA HASAO

ASSAM - 788931

31: SRI JONISH CHINGTHONG
R/O CHOTO LARPENG
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

32: SRI STIWINSON TERANG
R/O CHOTO LARPENG
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

33: SRI SARMEN ENGTI
R/O CHOTO LARPENG
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

34: SRI LUKAS TIMUNG
R/O CHOTO LARPENG
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

35: SRI SAMUEL RONGHANG
R/O CHOTO LARPENG
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931

36: SRI STEPHAN TERON
R/O CHOTO LARPENG
HAFLONG
DIMA HASAO
ASSAM - 788931.

37: SRI SING CHINGTHONG
R/O CHOTO LARPENG
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931

38: SRI JOYSON MILLICK
R/O CHOTO LARPENG
P.S. UMRANGSO
DIMA HASAO

ASSAM - 788931.

39: SRI BIREN ENGTI
R/O LONGMEKLU
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931

40: SRI DIMOS TIMUNG
R/O CHOTO LARPENG
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

41: SRI BIDASING ENGHI
R/O KRUNGMING LANGSO
P.O. UMRANGSHU
DIMA HASAO
ASSAM - 788931.

42: SRI LONGSING TERON
R/O KRUNGMING LANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

43: SRI SAMSON ENGHI
R/O KRUNGMING LANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

44: SRI WELSON TERANG
R/O KRUNGMING LANGSO
HAFLONG
DIMA HASAO
ASSAM - 788931

45: SRI DOMINIK TIMUNG
R/O KRUNGMING LANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

46: SRI KENGSING TERANG
R/O KRUNGMING LANGSO
P.S. UMRANGSO
DIMA HASAO

ASSAM - 788931.

47: SRI ROBINDRA RONGPI
R/O KRUNGMING LANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

48: SMT NA RONGPIPI
R/O KRUNGMING LANGSO
HAFLONG
DIMA HASAO
ASSAM - 788931.

49: SRI BIREN RONGHI
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931

50: SRI RAMSING RONGHI
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

51: SRI HARSING RONGHI
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

52: SRI ARJUN RONGHI
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931

53: SRI SARMEN TERON
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

54: SRI HORSING TERON
R/O HANJANGLANGSO
P.S. UMRANGSO
DIST. DIMA HASAO

ASSAM-788931.

55: SRI SARBURA TERANG
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

56: SRI SENG TISSO
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

57: SRI SARET RONGHANG
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931

58: SRI RAMSING TERANG
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

59: SRI SAR SING RONGHI
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM-788931

60: SRI AJIT TIMUNG
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

61: SRI SARMEN MILLIK
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

62: SRI LONGKI ENGHI
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO

ASSAM - 788931.

63: SRI JOYSING MILLIK
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

64: SRI SARMEN ENGHI
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

65: SRI JITEN RONGHANG
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931

66: SRI SARMEN RONGHI
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931.

67: SRI MOJARI RONGHI
R/O HANJANGLANGSO
P.S. UMRANGSO
DIMA HASAO
ASSAM - 788931

VERSUS

THE UNION OF INDIA AND 13 ORS
REPRESENTED BY THE SECRETARY, MINISTRY OF ENVIRONMENT, FOREST AND CLIMATE CHANGE (MOEFCC), INDIRA PARYAVARAN BHAWAN, JOR BAGH ROAD, NEW DELHI - 110003.

2:THE STATE OF ASSAM
REPRESENTED BY THE ADDITIONAL CHIEF SECRETARY TO THE GOVERNMENT OF ASSAM
MINES AND MINERALS DEPARTMENT
JANATA BHAVAN
DISPUR
GUWAHATI-781006.

3:THE PRINCIPAL CHIEF CONSERVATOR OF FORESTS (PCCF) AND HEAD

OF FOREST FORCE
ASSAM
REHABARI
GUWAHATI- 781008

4:THE NORTH CACHAR HILLS AUTONOMOUS COUNCIL (DIMA HASAO AUTONOMOUS COUNCIL
DHAC/NCHAC)
REPRESENTED BY THE PRINCIPAL SECRETARY (N)
NCHAC
HAFLONG
DIMA HASAO
ASSAM - 788819

5:THE SECRETARY (REVENUE)
NORTH CACHAR HILLS AUTONOMOUS COUNCIL
HAFLONG
DIMA HASAO
ASSAM - 788819

6:THE ADDITIONAL SECRETARY (REVENUE)
NORTH CACHAR HILL AUTONOMOUS COUNCIL
HALFLONG
DIMA HASAO
ASSAM

7:THE DIVISIONAL FOREST OFFICER (DFO)
HAFLONG FOREST DIVISION
HAFLONG
DIMA HASAO
ASSAM - 788819.

8:THE REGIONAL OFFICER
MOEFCC
NORTH EASTERN REGIONAL OFFICE
LUMBATNGEN
MADANRTING
SHILLONG
MEGHALAYA- 793007

9:THE ASSAM POLLUTION CONTROL BOARD
REPRESENTED BY ITS CHAIRMAN AND MEMBER SECRETARY
PANJABARI ROAD
GUWAHATI-781028

10:THE ASSAM MINERAL DEVELOPMENT CORPORATION LIMITED (AMDC)
REPRESENTED BY ITS MANAGING DIRECTOR

KHANIJ BHAWAN
R.P. ROAD
DISPUR
GUWAHATI-781006.

11:THE DIRECTOR (GEOLOGY AND MINING)
DIRECTORATE OF GEOLOGY AND MINING
GOVERNMENT OF ASSAM
KAHILIPARA
GUWAHATI-781019

12:M/S MAHABAL CEMENT PRIVATE LIMITED
REPRESENTED BY ITS DIRECTOR
REGISTERED OFFICE- 7
COUNCIL HOUSE STREET
2ND FLOOR
KOLKATA- 700001
CORPORATE OFFICE BL-C10
5TH FLOOR
NEW B.B.T. ROAD
SARDENGABAD EDEN CITY
KOLKATA - 700137.

13:M/S JK LAKSHMI CEMENT LIMITED
REPRESENTED BY ITS MANAGING DIRECTOR
REGISTERED OFFICE- JAYKAYPURAM
BASANTGARH
DIST.- SIROHI
RAJASTHAN- 307019 ADMINISTRATIVE OFFICE- GULAB BHAWAN (REAR WING)
3RD FLOOR
6-A
BAHADUR SHAH ZAFAR MARG
NEW DELHI - 110002.

14:THE SUPERINTENDENT OF POLICE
DIMA HASAO
HAFLONG
DIMA HASAO
ASSAM- 788819

Advocate for the Petitioner : MR. A I KATHAR, MR. A RONGPHAR

Advocate for the Respondent : DY.S.G.I., SC, DIMA HASAO,SC, P C B A,GA, ASSAM

BEFORE
HONOURABLE MR. JUSTICE MANISH CHOUDHURY

ORDER

Date : --13.07.2026

Heard Mr. A.I. Kathar, learned counsel for the petitioners; Mr. J.K. Goswami, learned Central Government Counsel for the respondent nos. 1 & 8; Mr. D. Nath, learned Senior Government Advocate for the respondent nos. 2, 11 & 14; and Mr. R.M. Das, learned Standing Counsel, Dima Hasao Autonomous Council [DHAC] for the respondent nos. 4, 5, 6 & 7.

2. The petitioners are residents of five villages – Nobdi Longkukro, Krungming Langso, Choto Larpeng, Langphlaidisa and Hanjanglangso, which are located in Umrangso area of Dima Hasao District. The petitioners are aggrieved by allotment/leasing of lands by the respondent authorities in favour of the respondent nos. 10, 12 & 13.

3. The learned counsel appearing for the State respondents have submitted that another writ petition, W.P.[C.] no. 467/2025, involving similar issues, is pending before this Court.

4. As the matter will require consideration, let notice be issued. The notice is made returnable on 17.08.2026.

5. Mr. Goswami, learned Central Government Counsel has appeared and accepted notices for the respondent nos. 1 & 8; Mr. Nath, learned Senior Government Advocate has appeared and accepted notices for the respondent nos. 2, 11 & 14; and Mr. Das, learned Standing Counsel, DHAC has appeared and accepted notices for the respondent nos. 4, 5, 6 & 7, formal notices need not be issued to the said respondents. Mr. Kathar, learned counsel for the petitioners shall furnish requisite nos. of extra copies of the writ petition along with the annexures, to Mr. Goswami, Mr. Nath and Mr. Das, within 2 [two] working days from today.

6. The petitioner shall serve a copy of the writ petition along with annexures to Mr. S. Baruah, learned Standing Counsel, Assam Pollution Control Board, within 2 [two] working days from today for service of notice upon the respondent no. 9.

7. The petitioner shall take steps for service of notice upon the respondent nos. 10, 12 &

13 by speed post, within 2 [two] working days from today.

JUDGE

Comparing Assistant